

Smt. Mamta Devi Srivastava v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 13 March 2014 · 2014 SCC OnLine All 3942 · Writ - C No. 13585 of 2014 · **Writ petition dismissed**

HEADNOTE

The two-year limitation bar in Section 56(2) of the Electricity Act, 2003 does not apply to the regular current bills of a continuing consumer who is being supplied electricity. Where the consumer's line had been reconnected/re-energised and she thereafter paid nothing for years while continuing to receive supply, a demand for those accrued charges is not a belated demand of the kind barred by s.56(2) (which addresses sums first shown as due after long delay, on pain of disconnection) but non-payment of ongoing bills. Whether bills were in fact sent is a disputed question of fact not decidable in writ jurisdiction, and the consumer has an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the Court declined to exercise Article 226 jurisdiction in favour of a gross defaulter and dismissed the petition.

HOLDING-UNITS

INTERPLAY · EA2003::56(2)

The s.56(2) two-year bar does not apply to a continuing consumer's regular current bills

QUESTION

Does the s.56(2) two-year limitation bar the recovery of accrued charges from a consumer who continued to be supplied electricity but did not pay?

HOLDING

No. The s.56(2) bar does not apply where it is not a case of a belated demand after disconnection but of non-payment of regular bills by a continuing consumer being supplied electricity; the consumer, having paid nothing since re-energisation while consuming, cannot invoke the 12/24-month bar. Whether bills were sent is a disputed fact not for writ jurisdiction, and the remedy lies under Clause 6.5; the Court declined Article 226 relief to a gross defaulter. ¶ (order)

LIMITING FACTS

Line reconnected in 2009 (respondents) or 2011 (petitioner); the consumer admittedly paid nothing since re-energisation while continuing to receive supply; demand of Rs. 1,29,558 for bills up to December 2013.

PRINCIPLE TAGS

s56(2)-bar-does-not-apply-to-continuing-regular-bills The s.56(2) limitation protects against belated first demands, not the ongoing accrued bills of a continuing consumer still being supplied; a gross defaulter who paid nothing while consuming cannot invoke it. ¶ (order)

relegate-to-statutory-remedy A dispute about whether bills were sent is a disputed fact for the Clause 6.5 remedy, not the writ court. ¶ (order)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER REGULAR BILLS WERE IN FACT SERVED ON THE CONSUMER

Disputed question of fact not decided in writ jurisdiction; left to the Clause 6.5 remedy. ¶ (order)